

sequence selected from ... SEQ ID No: ..."). According to the board this was not an unusual claim formulation. The board did not accept the appellant's argument that the scope of the claim extended to gene constructs which comprised any DNA in addition to the GBSS gene fragments. The skilled person would certainly take into account the fact that the gene construct was made for the purpose of introducing the GBSS DNA fragment into the potato cells and integrating it into the genome. Accordingly, the gene construct would be thought to contain all necessary DNA elements for these steps to take place.

In T.409/97 the board held that an erroneous statement in the introduction to the description was of no assistance in interpreting the claim and establishing the subject-matter for which protection was being sought, where this statement contradicted its actual content.

Two methods having no technical bearing on each other cannot form a single multi-step process (i.e. a "technical whole") even though they are linguistically linked together in a claim (T.380/01).

A prerequisite for arriving at a technically sensible claim interpretation is that the claim is technically consistent: if two features are separately clear, but inconsistent with each other from a technical point of view, then their combination, and the claimed matter, cannot be clear (T.935/14).

In T.1513/12 the board noted that an interpretation of a claim agreed by the parties to the proceedings was not to be regarded as binding on the board: the "principle of party disposition" was not to be understood as meaning that the parties to the proceedings could choose an interpretation of the patent which, although it might be satisfactory for them, might have implications for others not party to the proceedings.

In T.1603/13 the board stated that claims could not be interpreted in a manner that would contradict the idea of the invention as disclosed in the original application. The case law on correction of errors on the basis of the common general knowledge could not be extended to cases where the deviation from the common general knowledge and in particular from generally accepted laws of physics in the description had been deliberately chosen in order to describe the invention and thus could not be identified as an error.

See also chapter I.C.8.1.3 c) "Interpretation of process claims".

6.2. Meaning of terms and phrases: "comprising (substantially)", "consisting (essentially) of", "containing"

In T.759/91 and T.522/91 the claims contained the expression "comprising substantially". The board was of the opinion that this term lacked clear, explicit boundaries and its scope needed interpretation. While in everyday language the word "comprise" might have both the meaning "include" or "comprehend" and "consist of", in drafting patent claims legal certainty normally required it to be interpreted by the broader meaning "include" or "comprehend" (see e.g. T.457/02). The word "substantially" imposed a restriction on the word "comprising" in the sense that "to a large extent only that is comprised which is

specified". The boundaries of the term "comprising substantially" were therefore to be drawn where the essential characteristics of the specified subject-matter ceased. The scope of the term "comprising substantially" was therefore interpreted as being identical to that of "consisting essentially of". However, in view of the unequivocal character of the words "consisting of" as compared to "comprising", the expression "consisting essentially of" was to be given preference. See also T. 1730/09, T. 274/16.

In T. 1599/06 the board likewise had to interpret the term "comprising". It emphasised that the meaning of terms in a patent claim has to be determined from the point of view of the skilled person, who reads the claim in the context of the application and against the background of his/her common general knowledge. The claim was directed to a vaccinating agent comprising at least one specific purified and isolated protein of *Mycobacterium tuberculosis*. The examining division had interpreted the term "comprising" broadly and held that the claimed subject matter lacked novelty in relation to a partially purified protein fraction which, in their view, contained inter alia the specified proteins. In the board's view, however, the skilled person would derive from the application as a whole the information that the specific characteristic of the vaccinating agents according to the invention was their generation from isolated and purified *Mycobacterium tuberculosis* proteins. Therefore, he/she would have considered that the definition in claim 1 covered vaccinating agents that, firstly, were constituted from isolated and purified proteins as mentioned in the claims and, secondly, contained those proteins as their main constituents.

In T. 390/08 the board held that the definition of a composition as "consisting of" compulsory and optional components met the requirements of Art. 84 EPC, as such a composition defined a "closed" composition from which elements other than those mentioned were excluded. See also T. 1190/01, T. 1998/07.

In T. 2027/13 the claimed composition was defined by an open formulation (in view of the word "comprising"), which already implied the presence not only of the optional excipients, but also of any additional pharmaceutically acceptable components (including impurities) and even of further release controlling agents, and the expression "consisting essentially of", which referred to a single ingredient of the composition. As the usual reading of this expression did not make sense in the case in hand, the skilled person reading the claim was at a loss as to the possible limitation introduced by the expression.

In T. 1023/02 the board expressed its view that a claim using "comprising" language should generally not be construed as covering subject-matter which included further steps of a nature that would manifestly counteract the specified technical purpose of the step(s) recited in the claim.

In T. 405/00 the board considered that, according to the language conventional for patent claims in the field of chemistry, the wording "composition comprising a persalt" defined exclusively the mandatory presence of at least one of the specific chemical compounds belonging to the group of persalts.

In decision T.711/90 the board confirmed the assumption in the case law that the substitution of the term "consists of" for "contains" in a claim raised the question of clarity of the claim. When, as in the claim in question, the glass consisted of components denoted (i), (ii) and (iii), the presence of any additional component was excluded and, therefore, the proportions of the components (i), (ii) and (iii) expressed in percentages should have added up to 100 mole % for each claimed composition.

See also chapter II.E.1.15: "Comprises", "consists of", "consists essentially of", "contains".

6.3. Using description and drawings to interpret the claims

6.3.1 General principles

The subject-matter of claims is governed by Art. 84 EPC and their function by Art. 69 EPC. According to Art. 84 EPC the claims define the invention for which protection is sought. According to Art. 69 EPC the claims determine the extent of the protection which will be conferred by the patent, through their definition of the invention. Under Art. 69 EPC the description and drawings are used to interpret the claims. The question arises whether it is possible to interpret the claims in the light of the description and drawings as provided in Art. 69 EPC merely in order to determine the extent of protection or whether it is also possible to do so in order to establish whether the conditions governing patentability and clarity have been satisfied.

In a number of decisions, such as T.23/86 (OJ 1987, 316), T.16/87 (OJ 1992, 212), T.89/89, T.121/89, T.476/89, T.544/89, T.565/89, T.952/90, T.439/92, T.458/96, T.717/98, T.500/01, T.1321/04, T.1433/05 and T.2145/13, the boards of appeal have laid down and applied the principle whereby the description and drawings are used to interpret the claims and identify their subject-matter, in particular in order to judge whether it is novel and not obvious. Likewise, in a large number of decisions (e.g. T.327/87; T.238/88, OJ 1992, 709; T.416/88; T.194/89; T.264/89; T.430/89; T.472/89; T.456/91; T.606/91; T.860/93; T.287/97; T.250/00; T.505/04; T.711/14), the boards interpreted the claims in the light of the description and drawings in order to establish whether they were clear and concise within the meaning of Art. 84 EPC 1973.

Occasionally, however, the limits to interpretation in the light of the description and drawings are emphasised (see in this chapter II.A.6.3.6). A discrepancy between the claims and the description is not a valid reason to ignore the clear linguistic structure of a claim and to interpret it differently (T.431/03) or to give a different meaning to a claim feature which in itself imparts a clear credible technical teaching to the skilled reader (T.1018/02, T.1395/07, T.1456/14, T.2769/17). In T.1023/02, though, "unfortunate" claim language ("transcription" instead of "translation") in contradiction with the terms used in the description was interpreted differently.

In T.2221/10 the board referred to established case law according to which the description can be used as the patent's "dictionary" to assess the correct meaning of ambiguous terms used in claims (see in this chapter II.A.6.3.3). However, if a term used in a claim has a clear technical meaning, the description cannot be used to interpret such a term in a

different way. In case of a discrepancy between the claims and the description, the unambiguous claim wording must be interpreted as it would be understood by the person skilled in the art without the help of the description. See also T 2328/15 and T 1642/17.

In T 197/10 the board explained that if the claims are worded so clearly and unambiguously as to be understood without difficulty by the person skilled in the art, there is no need to use the description to interpret the claims. In the event of a discrepancy between the claims and the description, the unambiguous claim wording must be interpreted as it would be understood by the person skilled in the art without the help of the description. Thus, in the event of a discrepancy between clearly defined claims and the description, those elements of the description not reflected in the claims are not, as a rule, to be taken into account for the examination of novelty and inventive step. See, similarly, T 1514/14 concerning the examination of sufficiency of disclosure.

6.3.2 Relevance of Article 69 EPC

Several decisions refer to Art. 69(1) EPC 1973 (T 23/86, OJ 1987, 316; T 16/87, OJ 1992, 212; T 238/88, OJ 1992, 709; T 476/89; T 544/89; T 565/89; T 952/90; T 717/98). Other case law emphasises that Art. 69 EPC 1973 (Art. 69 EPC) and its Protocol are primarily for use by the judicial organs which deal with infringement cases (see e.g. T 1208/97, T 223/05; also T 1404/05). The board in T 556/02 made it clear that it applied solely the general principle of law applied throughout the EPC that a document had to be interpreted as a whole (see e.g. T 23/86, OJ 1987, 316; T 860/93, OJ 1995, 47). Art. 69 EPC 1973 was a specific application of this general principle. See also T 1871/09, T 1817/14.

In T 1646/12 the appellant, citing Art. 69(1) EPC and T 1808/07, argued that the opposition division should have used the description to interpret claim 1. The board stressed that Art. 69(1) EPC concerned only the extent of protection, which in turn was relevant only for the purposes of Art. 123(3) EPC and in national infringement proceedings. A general requirement that claims be interpreted with the help of the description could not be derived from Art. 69(1) EPC. It was nevertheless a general principle that a term could be interpreted only in context. Terms in a claim therefore had to be interpreted in the overall context of the claims set and the description (see also T 1817/14). Two extremes had to be avoided. On the one hand, limiting features mentioned in the description but not in the claims could not be read into the latter (see in this chapter II.A.6.3.4). They could not be inserted this way through interpretation, but only by amending the claims. On the other hand, claims could not be considered in complete isolation from the description. The skilled person interpreting the claim had to at least ascertain whether the expressions used were to be understood in their ordinary literal sense or whether they had a special meaning defined in the description. Likewise, if the claims were obscure, the skilled person had no alternative but to search for clarification both in the other claims and in the description and drawings (see in this chapter II.A.6.3.3). Using the description to interpret the claims was therefore admissible within certain limits, and sometimes even necessary; there was no need to invoke Art. 69(1) EPC.

In T.1279/04 the board did not share the appellant's (patent proprietor's) view that, for the purposes of assessing novelty in opposition proceedings, claims should be interpreted in accordance with Art. 69(1) EPC 1973 and the Protocol on its interpretation (see also T.1047/11, T.1578/13). Art. 69(1) EPC 1973 and its Protocol related to the extent of protection conferred by the patent or patent application, which was primarily of concern in infringement proceedings. They served to determine a fair protection – inter alia by reference to the description and drawings – in circumstances where the claim wording was set in stone. By contrast, in examination and opposition proceedings the value of future legal certainty was paramount. In this forum the function of the claims was to define the matter for which protection was sought (Art. 84 EPC 1973, first sentence). There was no case for anything other than a strict definitional approach (for an interpretation of this approach, see T.1534/12), given that in this procedural stage the claim could and should be amended to ensure legally certain patentability, in particular novelty and inventive step over any known prior art. Amendment rather than protracted argument should be the answer to genuine difficulties of interpretation in all aspects of the examination and opposition procedure, it being acknowledged that amendments to a patent as granted should be occasioned by grounds for opposition. See also T.145/14.

Likewise in T.1808/06 the board emphasised that, when the description has to be amended with regard to the requirement of Art. 84 EPC, it was only in situations where the removal of inconsistencies was not possible for procedural reasons (e.g. no amendment possible of the granted version) that – purely as an auxiliary construction – Art. 69(1) EPC could be invoked for an interpretation of the claimed subject-matter.

See also in this chapter II.A.6.3.4 "Reading additional features and limitations into the claims".

6.3.3 Interpretation of ambiguous terms or confirmation of the text of a claim

Many decisions which use the description and drawings to interpret the claims concern the interpretation of relative, ambiguous or unclear terms or cite the description merely to confirm the most obvious interpretation of the text of a claim (e.g. T.23/86, OJ 1987, 316; T.16/87, OJ 1992, 212; T.952/90; T.439/92; T.458/96; T.717/98; T.556/02; T.2145/13).

In decision T.50/90 the board pointed out that the description and drawings were used to interpret relative terms contained in the claims when the extent of protection had to be determined.

When the technical content of the claims and the description clearly establish how an invention operates, these features cannot be disregarded for the purposes of assessing patentability by interpreting them merely as defining an intended use (T.458/96).

In several decisions the boards have stated that terms used in patent documents should be given their normal meaning in the relevant art, unless the description gives them a special meaning (see e.g. T.1321/04, T.1089/11, T.25/15, T.1844/15). According to the established case law, the patent document may be its own dictionary (see e.g. T.311/93, T.523/00, T.1192/02, T.61/03, T.1321/04, T.1388/09, T.2480/11, T.1817/14; see also in